



DISPOSITION OF CHARGES
PD 468-142A (Rev. 1-06)

CASE NO.	2022-25365
BOOK & PAGE NO.	Page 1 of 1
PERSONNEL ORDER NO.	

SPECIFICATIONS AGAINST RANK/SURNAME		FIRST	M.I.	COMMAND
Lieutenant Witriol,		Joel		Housing PSA 7
SHIELD NO.	TAX REGISTRY NO.		DATE APPOINTED	
00000	942838		July 20, 2006	
RANK/NAME OF COMPLAINANT				COMMAND
Chief Prosecutor Andrea Robinson				CCRB - Administrative Prosecution Unit
DATE OF CHARGES	DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED	
April 12, 2022	November 2, 2022		November 2, 2022	

TRIAL COMMISSIONER

Honorable Rosemarie Maldonado

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY	
		PLEA ☐	TRIAL ☒
1. Lieutenant Joel Witriol, on or about June 4, 2020, at approximately 2000, while assigned to PSA 7 and on duty in the vicinity of East 136 th Street and Brook Avenue, Bronx County, wrongfully used force, in that he kicked [Complainant] in the face with the heel of his boot, without police necessity.	GUILTY		It is recommended that Respondent forfeit ten (10) vacation days and that he be suspended for ten (10) days.

Reviewed by Deputy Commissioner of Trials

R Maldonado
DEPUTY COMMISSIONER

11/24/23
DATE

Police Commissioner's Approval:

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Chen
POLICE COMMISSIONER

9/5/23
DATE



POLICE DEPARTMENT

January 24, 2023

-----X
In the Matter of the Charges and Specifications :

- against - :

Lieutenant Joel Witriol :

Tax Registry No. 942838 :

Housing PSA 7 :

Case No.

2022-25365

-----X
At:

Police Headquarters
One Police Plaza
New York, NY 10038

Before:

Honorable Rosemarie Maldonado
Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

Nicole Jardim, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

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To:

HONORABLE KEECHANT L. SEWELL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Lieutenant Joel Witriol, on or about June 4, 2020, at approximately 2000, while assigned to PSA 7 and on duty in the vicinity of East 136th Street and Brook Avenue, Bronx County, wrongfully used force, in that he kicked [Complainant] in the face with the heel of his boot, without police necessity.

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on November 2, 2022. Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. The CCRB entered the hearsay statement of Complainant into evidence. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I find Respondent guilty of the charged misconduct and recommend that Respondent forfeit ten (10) vacation days and that he be suspended for ten (10) days.

ANALYSIS

From late May to mid-June 2020, the City experienced an outpouring of citizens who took to the streets to express outrage over George Floyd's murder at the hands of a Minneapolis police officer. These unprecedented protests resulted in large crowds, often unplanned and mobile in nature, which spread across every borough of this City. Adding to the challenges of policing such large-scale demonstrations was the fact that legitimate First Amendment expression occurred simultaneously with criminal behavior, including firebombing, looting and violence toward the police. As a result, from June 1 to June 6, 2020, Mayor de Blasio and

Governor Cuomo imposed a citywide 8:00 p.m. curfew in New York City. Non-exempt personnel who violated the curfew were subject to arrest. It is within this context that the incident at issue in this case occurred.

On June 4, 2020, Respondent was the Integrity Control Officer of PSA 7, working the 4:00 p.m. to midnight shift. Sometime after 5:00 p.m., all uniformed members of service in that unit were ordered to "suit up" and prepare to deploy. Respondent recalled that the Department had shared intelligence with officers that individuals who aimed to start rioting were traveling to the Bronx by bus. They also received reports that the NYPD had detained a vehicle carrying Molotov cocktails. The Department advised all officers to exercise caution. (Tr. 49-52, 65-68, 72)

While still at PSA 7, Respondent received a number of "10-85" radio transmissions from officers in the field who were requesting assistance. Soon thereafter, a "10-13" distress call came through requesting urgent assistance at 136th Street and Brook Avenue in the Bronx.

Respondent described that call as follows:

[I]t was really bad, like numerous officers calling for help. You could hear it in their voice, they are in distress. And, basically, putting over, too, that be careful for cocktails, bottles with urine, feces. They, basically, kept on saying to whoever comes, basically, be careful, watch your back. (Tr. 52-53)

Respondent recounted that after receiving the transmission he "ran" from his office and "jumped" into a RMP, not taking notice of what car he was entering or who was driving. The distress calls continued during the seven-minute drive. He estimated that upon arrival, there were approximately 600 individuals in the area. The scene was chaotic, with residents of a housing development attempting to block protestors from entering. Some in the crowd began throwing items such as socks stuffed with rocks, bottles of urine, mace and "cocktails" at the police. (Tr. 53-56, 67-68)

Respondent was present as the 8:00 p.m. citywide curfew approached. He estimated that at about 7:50 p.m., a chief used a microphone to announce that everyone was “free to leave” the area. Some complied, but many stayed and resisted enforcement of the curfew. Respondent testified that the Strategic Response Group took the lead, but were outnumbered and could not maintain control. He specifically recalled items being thrown at cops and them slipping while struggling to make arrests. During one interaction, a civilian attempted to take an officer’s firearm. (Tr. 56-58)

Respondent began assisting with curfew enforcement. Although engaged in police action, he failed to activate his Body-Worn Camera. Nonetheless, it is uncontested that Respondent grabbed Complainant by the arm and swung her around to facilitate her arrest. The sole issue in this case is whether Respondent also kicked her in the face without police necessity as other officers handcuffed her. (Tr. 60-61, 63-64, 69-71, 79)

Complainant did not appear to testify at trial. Instead, CCRB relied on a hearsay statement to present her version of events. On June 26, 2020, a CCRB investigator conducted a telephonic interview of the Complainant -- a 21 year-old female who was 5’3” and weighed 120 pounds. During that interview, she alleged that on June 4, 2020, at approximately 7:30 p.m., she was participating in what she described as a “peaceful protest” near 136th Street and Brook Avenue in the Bronx. It was her recollection that before the 8:00 p.m. curfew, officers refused to let people leave and used force to “trap” or “kettle” them into confined spaces. (CCRB Ex. 10 at 4, 16-17, 25-27, 33-34).

Complainant told CCRB investigators that a police supervisor “yanked” her out of the crowd as she was holding hands with other protestors and “slammed me down on my knees” “into a swarm of officers.” She stated that instead of “verbally addressing me to put my hands

behind my back,” the officers struck her with batons as she was zip tied. Complainant asserted that although she was “compliant,” she “was kicked in the face by the sergeant¹ who dragged me out of the crowd of protestors.” (CCRB Ex. 10 at 17-18) Later in the interview, Complainant elaborated that her knees were “kicked in” before falling to the ground. As she kneeled with her body “tilted upwards,” she was “kicked in the face.” Complainant explained that the kick landed on her right eye and cheek. Respondent did not say anything after that and “just left.” Complainant added that officers continued to strike her head and back with batons and that she might have briefly “blackened out.” (CCRB Ex. 10 at 18-19, 45-47, 51-52).

During the interview, Complainant also told CCRB that she suffered “pretty severe” injuries, including a black eye and a large cut on her nose. She also recalled a “boot print scab” on her face. (CCRB Ex. 10 at 5-6, 19) Because Complainant thought she might have a concussion, she sought medical help from the NYPD. Records in evidence detail that an ambulance transported Complainant to § 87(2)(b) Fire Department documents note that Complainant was ambulatory, but had “a contusion to the nose,” “pain” in the neck and head, and “bleeding” that was eventually “controlled.” (CCRB Ex. 9 at 1) Screenshot images of Body-Worn Camera footage show Complainant in an ambulance and confirm that, as she was being transported, she had a “black eye” and cut on her nose. (CCRB Ex. 6B)² § 87(2)(b) medical records reported her claim that she was “hit” and “kicked” by the police. Their medical findings include a “scalp hematoma,” as well as injuries to the right eye and nose. (CCRB Ex. 8 at 4, 6) Specifically, the records note that:

¹ Complainant explained to the investigator that she believed it was a sergeant because “the sergeants were wearing white shirts” and the other officers around her “were all wearing black shirts.” (CCRB Ex. 10 at 28) It is clear that Complainant’s assumption about Respondent’s rank is incorrect. There is no dispute that Respondent pulled Complainant from the crowd, that he was a lieutenant at the time of this incident and that members of service in the rank of lieutenant and above wear white shirts, not sergeants.

² This tribunal notes that these photographs also depict Complainant’s facial tattoos.

Pt BIBEMS³ in NYPD custody. Pt reported that she was at the protest when she was shoved to the ground and kicked in the head. Pt noted with abrasion to R side of nose, R infraorbital ecchymosis/abrasion, and bruising to bilateral lower forearms. Pt reported LOC for approximately 3 min. No battle sign noted... (CCRB Ex. 8 at 3)

The attending physician ordered a CT scan; the results were negative. (CCRB Ex. 8 at 6; CCRB Ex. 10 at 9) The hospital gave Complainant Tylenol for pain control and released her into police custody § 87(2)(b) the following morning. (CCRB Ex. 8 at 6)

At trial, Respondent testified that police told protestors that they would be arrested if they refused to disperse before the 8:00 p.m. curfew. According to Respondent, Complainant did not comply and then resisted arrest by failing "to give [her] hand" when an officer grabbed it. He further recounted that she pulled her hand back and was "kicking." While attempting to effectuate the arrest, Respondent witnessed individuals to his left attempt to toss a wheelbarrow at them. He also claimed that he was sprayed with mace coming from both officers and civilians. (Tr. 59-60, 79)

According to Respondent, his physical contact with Complainant was limited to grabbing her by the arm and swinging her around in order to arrest her. He indicated that after he was maced, other officers stepped in. Respondent emphatically denied intentionally kicking or stomping Complainant in the face or head. He acknowledged that Body-Worn Camera footage captured him leaning forward with his leg moving toward Complainant. Respondent asserted, however, that as he interacted with Complainant, he rubbed his eyes and at that moment "slipped on something." Another officer "held me up, pushed me back..." and kept him "from falling." When asked during cross examination whether he had told CCRB at his interview that his foot may have made "contact" with Complainant, he responded, "Not kicked her, lost balance and

³ BIBEMS is acronym for "brought in by emergency medical services."

made contact with her Nothing on purpose over there, if anything.” He also acknowledged that he had not mentioned being maced during his CCRB interview, but explained that his recollection was refreshed after repeatedly watching the video. (Tr. 61-62, 64, 82-84, 90-91)

The primary issue raised by the proof in this case is whether Complainant’s hearsay statement is sufficiently reliable to support a finding that Respondent used excessive force. For the reasons set forth below, this tribunal concludes that the entirety of the record supports a finding that Respondent kicked Complainant without police necessity.

First, I credit Complainant’s hearsay statement that Respondent was the member of service who injured her. It is well-established law that although hearsay is admissible in an administrative tribunal, it must bear sufficient indicia of reliability to be accorded probative weight. *See* Disciplinary Case No. 2014-11948 (May 27, 2015), citing *Ayala v. Ward*, 170 A.D.2d 235 (1st Dep’t 1991). In cases where a charge is based primarily on hearsay, the out of court statement is deemed sufficiently reliable only if it is detailed and corroborated and ‘so substantially reliable and probative that a reasonable inference of the existence of a fact may be culled therefrom.’” Disciplinary Case No. 2018-19483 (April 29, 2021), quoting *Police Dep’t v. Ayala*, OATH Index No. 401/88. (Aug. 11, 1989); *see also Dep’t of Envtl. Prot. v. Ginty*, OATH Index No. 1627/07 (Aug. 10, 2007). Complainant’s hearsay statement meets this standard.

I read the transcript and listened to the audio recording of CCRB’s telephonic interview of Complainant. I found her account to be detailed, consistent and entirely convincing. She repeatedly asserted, in a clear and direct manner, that the supervisor in the “white shirt” who grabbed her arm and pulled her out of the crowd was also the member of service that kicked her in the eye. Neither her tone nor the manner in which she answered questions gave any indication that she was fabricating this claim. On the contrary, Complainant seemed to be making an effort

to provide the most accurate information she could under the circumstances. For example, when asked whether she was able to identify any officer by name, Complainant told the investigator that she only had the name of the officer who escorted her to the hospital. She quickly emphasized, however, that that officer “didn’t do anything wrong.” (CCRB Ex. 10 at 35) Complainant was also honest about not being able to provide certain details. She candidly stated that she might have “blacked out” and thought she could have a concussion, but openly acknowledged that the CT scan was negative. In addition, Complainant submitted a photo identifying Respondent as the officer who kicked her. (CCRB Ex. 11)

Second, Complainant made a contemporaneous statement as to how she was injured just hours after this incident. As noted in detail above, she reported to medical personnel at § 87(2)(b) that she was “hit” and “kicked” by the police. In addition, the medical records, and photos introduced into evidence, corroborate the nature and extent of the injuries she described to CCRB during her interview. In sum, there is convincing documentary to support that she did not embellish her statement to the CCRB.⁴

Third, Body-Worn Camera footage from various officers support Complainant’s claim that Respondent is the officer that kicked her. The videos in evidence briefly capture the chaotic scene and this specific incident from two different angles. The following is a summary of the relevant segments of the Body-Worn Camera footage entered into evidence:

CCRB Ex. 3:

- 0:27:39: Respondent grabs Complainant and swings her away from the fence and onto the ground. A female voice says, “Let me go home.” A male voice repeats, “Get on the ground”

⁴ In making this credibility finding I acknowledge that Complainant stated she had a civil lawyer and that this might serve as a potential motive to embellish facts. During her CCRB statement, Complainant also made some unflattering comments about the NYPD. Given the totality of evidence, however, I am not persuaded that any of these potential credibility issues are strong enough to undercut her corroborated account of what occurred in this case.

- 0:27:45: Multiple officers hunch over to zip tie arrestees

CCRB Ex. 1

- 0:27:45: An officer says, "Stand up, Stand up" to an unknown individual
- 0:27:45: Respondent is hunched over Complainant. An indeterminate shadow seems to briefly pop up and then recede
- 0:27:50: Respondent stands upright
- 0:27:51: Respondent leans forward and steps forward
- 0:27:51: A police officer uses his right hand to push Respondent away from the scene. Respondent walks away

Upon careful review of these brief video segments, this tribunal concludes that they captured the moment Respondent moved his leg to kick Complainant. In fact, as noted above, Respondent acknowledged that the Body-Worn Camera recorded him leaning forward and moving his leg toward Complainant. He also acknowledged at trial that an officer pushed him back. The most logical inference that can be drawn from this evidence, and the entirety of the record, is that Respondent injured Complainant by kicking her in the eye and that a fellow officer observed this unnecessary force and interceded.

Fourth, Respondent's explanation that his admitted actions were not intentional do not correspond to the video recordings. Respondent claimed that as he grabbed Complainant, he was maced, "rubbed" his eyes and "slipped on something," making any subsequent contact with Complainant accidental. As brief as the video segments are, they do not depict Respondent, or any other officer, wiping their eyes. In addition, Respondent steps purposefully and is in command of his own body. Moreover, his assertion that a police officer pushed him back to keep him "from falling" is not supported by the type of motion used. In short, Respondent's version of events defies logic.

Accordingly, this tribunal finds that Respondent is guilty of the charged misconduct.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

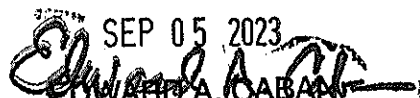
Respondent, who was appointed to the Department on July 20, 2006, has been found guilty of kicking a civilian in the eye without police necessity. The CCRB has recommended a penalty of 10 vacation days and 10 suspension days, representing the presumptive penalty for non-deadly force resulting in physical injury. The tribunal finds that this recommendation fairly and adequately addresses Respondent's misconduct during this incident. Accordingly, I recommend that Respondent forfeit ten (10) vacation days and that he be suspended for ten (10) days.

Respectfully submitted,



Rosemarie Maldonado
Deputy Commissioner Trials

APPROVED

SEP 05 2023

EDWARD A. CABAN
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

January 19, 2023

Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: Lieutenant Joel Witriol
DADS #: 2022-25365

Dear Commissioner Sewell:

The above-referenced case was tried on November 2, 2022, by Administrative Prosecutor Nicole Jardim for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Deputy Commissioner of Trials ("DCT"), Rosemarie Maldonado, dated January 6, 2023. I respectfully submit the following comments regarding that draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Lieutenant Joel Witriol, was charged with the following:

1. Lieutenant Joel Witriol, on or about June 4, 2020, at approximately 2000, while assigned to PSA 7 and on duty, in the vicinity of East 136th Street and Brook Avenue, Bronx County, wrongfully used force, in that he kicked § 87(2)(b) in the face with the heel of his boot, without police necessity.

PG 221-02 page 2, Prohibition 11 USE OF FORCE

The Court found Lieutenant Witriol Guilty of Specification One (1) and recommended a penalty of the forfeiture of ten (10) vacation days and a period of suspension of ten (10) days. The CCRB agrees with DCT's finding and penalty recommendation and CCRB respectfully requests that you accept this finding and penalty recommendation.

STATEMENTS OF FACTS

CCRB adopts the statements of facts articulated in DCT Maldonado's Draft Decision.

ARGUMENT

Lieutenant Witriol was found guilty of wrongfully using force against § 87(2)(b) by kicking her in the face. The Court's recommended penalty of the forfeiture of ten (10) vacation days and a period of suspension of ten (10) days, is an appropriate disciplinary penalty for Lieutenant Witriol. Considering the misconduct at issue in this case, § 87(2)(b) CCRB statement entered in evidence, the video evidence submitted at trial and the testimony that was given by Lieutenant Witriol during this trial, it is appropriate for Lieutenant Witriol to receive a penalty of the forfeiture of ten (10) vacation days and a period of suspension of ten (10) days, as recommended by DCT Maldonado.

It is undisputed based on the evidence and testimony presented at trial that Lieutenant Witriol kicked § 87(2)(b) in the face causing injury. CCRB Exhibits 1 and 3, video evidence presented at trial, capture the moment that Lieutenant Witriol leaned forward, lifted his leg, and moved it forward to kick § 87(2)(b) in the face. During his direct examination, Lieutenant Witriol stated that his interaction with § 87(2)(b) was limited to him grabbing her arm and swinging her around to facilitate her arrest. (Tr. 60-61). However, on cross examination, Lieutenant Witriol admitted that the videos depicted him leaning forward and moving his leg towards § 87(2)(b) face. (Tr. 82-84). In addition to the video evidence presented, § 87(2)(b) sworn CCRB interview was introduced at trial as CCRB Exhibit 10. In her CCRB interview, § 87(2)(b) stated that she was kicked in the face by an officer wearing a white shirt and provided CCRB Investigator Strauss with a photograph of the officer who kicked her in the face. At trial, Lieutenant Witriol identified himself as the officer in that same photograph, CCRB Exhibit 11, provided to the CCRB by § 87(2)(b) § 87(2)(b) CCRB testimony as to what Lieutenant Witriol did to her is detailed and credible. In her draft decision, DCT Maldonado states that she found § 87(2)(b) account to be "detailed, consistent, and entirely convincing". (DCT Maldonado's Draft Report, page 7). Lastly, § 87(2)(b) made a contemporaneous statement just hours after the incident when she was taken to § 87(2)(b) for treatment of her injuries. § 87(2)(b) reported to medical personnel that she was "hit" and "kicked" in the face by an officer. § 87(2)(b) records also show that § 87(2)(b) suffered a "scalp hematoma" as well as a black eye and injuries to her cheek (CCRB Ex. 8, at 4 and 6).

While Lieutenant Witriol at first denied that his foot ever made contact with § 87(2)(b) face, during cross examination he attempted to defend his misconduct by stating that any contact his foot might have made with her face was unintentional. He also stated that he lost balance and leaned forward because he had just been maced and was rubbing his eyes. (Tr. 82-84). However, when evaluating the totality of the evidence, Lieutenant Witriol's defenses fail. First, CCRB Exhibits 1 and 3 clearly show and Lieutenant Witriol admitted, that he was leaning forward as his leg moved towards her face. This body language and leg movement is intentional and not consistent with someone who lost his balance as Lieutenant Witriol testified. Second, as noted by DCT Maldonado in her draft decision, the video evidence does not support Lieutenant Witriol's claim that his admitted actions were unintentional. (DCT Maldonado's Draft Report, page 9). While Lieutenant Witriol testified that his contact with § 87(2)(b) was accidental because he was maced and rubbing his eyes at the time, video evidence does not support this. The video evidence does not show Lieutenant Witriol, or any of the officers, rubbing or wiping their eyes. Lastly, the injuries reported by § 87(2)(b) and supported by photographs and medical records from § 87(2)(b) show

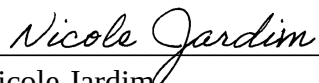
several injuries consistent with being intentionally kicked in the face. Lieutenant Witriol's testimony of his interaction with § 87(2)(b) that day is incredible and as DCT Maldonado stated, "respondent's version of events defies logic." (DCT Maldonado's Draft Report, page 9).

There was no credible or imminent threat of harm to Lieutenant Witriol or other members of service to justify the level of force that Lieutenant Witriol used against § 87(2)(b) in this case. § 87(2)(b) was unarmed and was surrounded by several other officers already when Lieutenant Witriol approached her. Lastly, when Lieutenant Witriol kicked § 87(2)(b) in the face, § 87(2)(b) was on the ground and already being placed under arrest by other officers. Lieutenant Witriol's actions were unreasonable, unjustified, and caused physical injury to § 87(2)(b). When Lieutenant Witriol kicked § 87(2)(b) in the face, he was in direct contradiction of the standards and values that are to be upheld by the members of service in the New York City Police Department. Lieutenant Witriol's misconduct in this case warrants the imposition of the presumptive penalty of the forfeiture of ten (10) vacation days and a period of suspension of ten (10) days.

CONCLUSION

For all these reasons, CCRB requests that you accept DCT Maldonado's findings and penalty recommendation and find Lieutenant Witriol guilty of Specification One (1) with a penalty of the forfeiture of ten (10) vacation days and a period of suspension of ten (10) days.

Respectfully submitted,



Nicole Jardim
Prosecutor
Administrative Prosecution Unit
Civilian Complaint Review Board

Cc: Marissa Gillespie, Esq.